

Ref No.: BD-ACEPM-SAMCO-LET-012

Date: Sunday, 05 October 2025

To: SAMCO National Construction Company

Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District

Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Variation Procedure and Notice Requirement

Reference (S): N/A

Dear Sir,

With reference to the Contract Agreement, and in accordance with General Conditions Sub-Clause 13.3 (Variation Procedure), and as amended by the Particular Conditions of the Contract, this letter serves to remind you of the required procedure to be followed regarding Variations and the related notice obligations.

As stipulated in the Contract, whenever the Engineer issues any instruction according to Sub-Clause 3.3 (Instructions of the Engineer) which may change in design drawings, BOQ quantities or any contractual conditions and through notes mentioned by the Engineer or his Consultants as additional requirements on submittals, shop drawing, RFI, ...etc., and the Contractor considers that such instruction may constitute a Variation to the Works or may result in additional cost or affect the Time for Completion—the Contractor shall, within fourteen (14) days from the date of such instruction, submit a written notice to the Engineer. This notice shall describe the probability that the instruction could result in a Variation to the Scope of Works indicating any potential cost and/or time impact that may arise as a consequence of implementing such instruction based on the Contractual Conditions.

Upon receipt of the Contractor's notice, the Engineer will review the submission and determine whether the instruction constitutes a Variation. If confirmed, the Engineer will proceed in accordance with Sub-Clause 13.3 and Sub-Clause 3.5 [Determinations], by issuing "Variation Instructions" and upon this instruction the contractor shall start making the required "Variation Proposal" for this VI within 14 days.

You are therefore instructed to strictly comply with the above requirement whenever you believe that an instruction from the Engineer may give rise to a Variation.

Yours faithfully,

Eng./ Abdelaziz Mohammed.



CC:

Eng. Mostafa Gala – Owner representative